

Development Management (Control) Handbook

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Foreword

This Handbook focuses on the Development Management (Control) and Building Plan Appraisal Procedures in local authorities. It should be read in conjunction with the Regional, Town and Country Planning Act [Chapter 29:12], Urban Councils Act [Chapter 29:15], Model Building By-Laws and other allied statutes, guidelines, and standards issued by national government from time to time.

This Handbook was prepared with the objective of providing an easy reference to development management practitioners in Zimbabwe's rural and urban local authorities. Ultimately, it is expected that this initiative will aid in promoting uniformity in development management practice and standardisation in the country. It is therefore, an important resource material for the newly qualified development management/control practitioner and a good reference for an experienced one.

The document draws on the work done in developing a development management/control manual for the Rural Areas of Zimbabwe in 1990 (Government, 1990). The financing of the aforesaid manual was provided by the Swedish International Development Agency (SIDA) at the request of the then Ministry of Local Government, Rural and Urban Development through the Urban Development Corporation. The adaptation of the Manual for use in urban areas was financed by the United Nations Development Program through the **"Strengthening Local Government Service Delivery Capacity for Sustainable and Inclusive Development" 2016-2020 program.** Further work on the Handbook was supported by GIZ under **the Strengthening Service Delivery Project (No. 2018.2254.3)**. In all instances the processes involved experienced sector professionals and competent facilitators

The production of this Handbook was undertaken by a group of development management/control practitioners drawn from urban and rural local authorities, the Ministry responsible for local government, University of Zimbabwe's Department of Rural and Urban Planning, Zimbabwe Institute of Regional and Urban Planners, Urban Development Corporation and other organisations. These included Town Planning Practitioners, Public Health Practitioners, Housing and Community Services Practitioners, Municipal Engineers and the Academia.

The first UNDP-supported process was facilitated by Daniel Chirundu (Director of Health Kadoma City) while the GIZ-supported work was facilitated by Kudzai Chatiza (Development Governance Institute). To all those who contributed resources and technical guidance directly or indirectly, I am indebted.

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Mr. Z. R. Churu
Permanent Secretary
Ministry of Local Government and Public Works

Preface

Government of Zimbabwe's Vision 2030 of attaining an Upper Middle-Income Economy status requires comprehensive spatial planning and development in compliance with relevant state policies, constitutional provisions, sustainable development goals (SDGs and the New Urban Agenda), national planning law and the competent administration of development management procedures.

Compliance with these instruments requires that national and local government officials establish and utilise procedures that allow diligent development management. This enables avoidance of any breaches of procedures while assuring citizens and land developers that where mistakes occur they will be detected and corrective actions taken speedily.

The Ministry of Local Government and Public Works supports urban and rural local authorities to run development management/control matters in keeping with the law. It performs this function in close collaboration with other strategic Ministries of the Government of Zimbabwe. Ministry's performance is guided by relevant national policies, the Constitution of Zimbabwe, and other laws. It is this institutional framework that guided the production of this Development Management/Control Handbook.

The purpose of the Manual is to enhance the integrity of development management/control frameworks of all local authorities in Zimbabwe. It outlines the roles of local and national officials in development management. It captures all the key functions critical for efficient and effective local spatial planning and management of the built environment across the whole land development value chain. The procedures for executing each key function are outlined in a manner that will enhance transparency, reduce conflict, and ensure predictability in development management/control.

The primary users of this Manual are national and local government officials, including policy makers (Councilors) tasked with performing policy development, implementation, and evaluation development management/control functions. Their roles and relations are defined in a manner that will enable easier assessment of performance and improve decision making processes. The Manual will be particularly useful guidance for Councilors in undertaking their policy making and oversight functions.

Citizens and residents will also find the guidance provided in this Manual useful. By referring to the Manual they will find it easier to navigate the different stages involved in holding their local authorities to account on development management/control matters. This will help address challenges experienced in the past where public resources were lost, efforts misdirected, and some built environment actors felt victimised where demolitions and evictions were ordered.

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Hon. J. G. Moyo, Minister for Local Government and Public Works

1.0 INTRODUCTION

Zimbabwe has a history of developing and managing sustainable settlements that are safe, inclusive and resilient. Their development and management has involved considerable state investment in infrastructure development guided by clear policies and standards.

National macro-economic policy frameworks have clear focuses on infrastructure development and support towards utilities underpinning the importance of well-planned and sustainable settlements in the country. The need to maintain this investment in infrastructure, and ensure effective and systematic management of development in a professional and inclusive manner is widely recognised. Improvements to the physical environment in particular promoting order, health, safety, amenity, convenience and general welfare in the public interest have lagged behind in recent years.

There are a number of emerging issues that are impacting on development management/control practise in the country. The Constitution requires that there are checks and balances in processing evictions and demolitions through seeking a Court Order if the demolition is not effected voluntarily by the developer. New land uses such as Liquefied Petroleum Gas (LPG) Filling stations at business centres, mobile phone base stations, solar farms, urban agriculture, open air worshiping, and car washes among others have evolved with time. These require Local Planning Authorities to be proactive.

There is therefore, need for a paradigm shift. The environment now requires that we transition from "development control" to "development management'' underpinned by meaningful community participation. This will help with meeting community aspirations within human settlement. In this regard, competent policy makers ad spatial planning practitioners are needed. All Local Authorities should therefore, ensure that adequate and competent town planning professionals are available as they are important actors in development management.

1.1 Institutional Framework

The Manual upholds people's basic rights that are enshrined in the Constitution of Zimbabwe particularly the national objectives in Chapters 2 and 4. In addition to the Constitution of Zimbabwe, the following legislation is important to the everyday functioning of a Local Authority with respect to spatial planning and development management/control.

- The Regional Town and Country Planning Act [Chapter 29:12]
- Urban Councils Act [Chapter 29:15]
- Public Health Act [Chapter 15:09]
- The Factories and Works Act [Chapter 14:08]
- Liquor Licencing Act [Chapter14:12]and
- The Model Building By Laws (1977)
- Local authority by-laws and instruments that impacts on development management.

In addition to using relevant statutory instruments, preparation of this Handbook drew from other publications, in particular Department of Physical Planning Guidelines, the Ministry of Health and Child Care Minimum Requirements for Premises, by-laws and best practises from various local authorities. This Guideline should therefore, assist in simplifying existing development management/control instruments by providing a simple job aide to be used by urban local authority development management/control practitioners.

Current dynamics in society require that development management/control is looked at through new lenses. It is important that the impact of development management/control actions aim to create "attractive, comfortable and convenient environments''. Using a systems approach, it then follows that development management/control outcomes should include aesthetic, convenient, socially inclusive and safe settlements in which there is compatibility with existing developments. The output of any

development management/control process should therefore arise from public consultations as a basis for examining viable options to ensure compliance (both voluntary and mandatory compliance) with existing plans and enforcement. To realise impacts at national level there is need for adequate inputs at local level. Development management inputs include:

i. Formulation of Policies
ii. Having appropriate legislation.
iii. Formulation of Standards and bench marks
iv. Ensuring that competent human capital is in place, effectively organised and equipped to perform
v. Designing and executing relevant human capital development (capacity building) initiatives
vi. Ensuring that Local Planning Authorities embrace appropriate Information Communication Technology in development management/control.

1.2 Defining Development and its Management (Control)

The above institutional frameworks frame the definition of Development and its Management/Control. Development in this Handbook relates to the alteration of the physical environment taking place within the context of a system of planning and management. According to *Section 22(1)* of the Regional Town and Country Planning Act [Chapter 29:12], development is 'the carrying out of building, engineering, mining or other operations in, on, over or under land, or making of any material change in the use of buildings or other land'.

Development management/control is the process by which a Local Planning Authority regulates and manages land use, construction and use of buildings. Therefore, all areas under the jurisdiction of a Local Planning Authority should have a development plan showing the existing and future use of the land in different land use categories. Example of the broad land use categories include

- Commercial (shops and offices)
- Industrial,
- Residential (housing)
- Recreational
- Institutional (public buildings, community halls *etc.*)

The land uses should be arranged in a systematic manner so that conflicts do not arise. This includes assigning separate zones for major uses as well as consciously mixing those uses that can complement each other. The mixing of developments also involves efforts at building social, economic and other forms of resilience within a settlement. Conflict may arise for example where a grinding mill or tannery is located next to or within a residential area without the necessary safeguards. When a new development takes place, it should follow the development plan as closely as possible. This development should be managed by the Local Planning Authority. The Regional Town and Country Planning Act [Chapter 29:12] Part III *section 10(1)* designates Local Planning Authorities in Zimbabwe.

1.2.1 Objectives of Development Management

The main aims of development management/control are:-

i. To ensure that development takes place within the designated land use, e.g. residential, commercial *etc.*
ii. To protect people and property by ensuring that buildings are safely constructed, that living conditions are healthy and that the environment is free of pollution.
iii. To protect the environment by setting conditions in development permits.
iv. To improve the standard of development by improving the landscape of planned areas and the quality of buildings.
v. To promote development through the coordination of private and public investment for the more efficient use of land.

Thus, development management/control is not only a control mechanism but a promotional and value-adding tool that ensures development is carried out in a manner that will not create a danger to the public, adversely affect the health of the community, and cause a nuisance, or damage the environment.

1.2.2 Mechanisms for Development Management

A Local Planning Authority has the responsibility to ensure that its area of jurisdiction is developed properly and managed economically so that the rights of denizens are protected and public resources are well-spent. Any natural or juristic person and institution intending to carry out development must first get the permission of the appropriate Local Planning Authority. This permission, sometimes called the planning permission, is issued in the form of a **Development Permit** by the Local Planning Authority**.**

Undertaking development without a permit is an offence. The Local Planning Authority is empowered to take legal action against offenders. Developers need to know when a development permit is required. The Regional, Town and Country Planning Act (Chapter 29:12) together with the General Development Order and Special Development Order define the development permit requirements.

1.2.3 Circumstances where Development Permits are needed

A development permit is required when:

a) Any building or mining operations carried out on, over or under the land **except** where permitted by the Mines and Minerals Act [Chapter21:05].
b) The deposit of waste materials on any land.
c) Changes to the character, use and intensity of use of the land or buildings.
d) The construction or change of any enclosure.
e) The construction of an out-building which is greater than 30m^2 or 10% of the floor space of the principal building whichever is the less.
f) The use of any vehicle or similar object *e.g.* caravan as a building for longer than six months.
g) Any additional/extension to a dwelling.
h) Carrying out alterations which affect the external appearance of a building.
i) Changing a single family dwelling to enable it to be used as two or more separate dwelling units/flats.
j) Outbuildings used for human habitation or those not incidental to the use of the dwelling house.
k) Building a swimming pool.
l) Any development which obstructs or limits visibility at or near bends and road junctions or involves a new access to a road.
m) The display of an advertisement on any land or external part of buildings except:
   i. Advertisements not visible outside enclosed land.
   ii. Traffic signs and statutory advertisements.
   iii. Functional advertisements of a local authority, statutory body or public transport undertaking.
   iv. Advertisements for identification, direction or warning.
n. Any development which conflicts with conditions of a title deed or permit, an approved plan or an order.
o. Any development within environmentally sensitive areas, e.g. wetlands and water course.

1.2.3 Circumstances where a Development Permit not required

According to *Section 22* of the Regional, Town and Country Planning Act [Chapter 29:12] a permit is **not** required in respect of :-

I. Activities not defined as development in *Section 22* of the Act.
II. Existing development which enjoys existing use rights.
III. Activities referred to in a development order.
IV. The temporary construction of a building or use of land required in connection with operations which have been granted a development permit.

V. The development by a local authority of the provisions of any approved plan/scheme or ministerial directive/approval.
VI. Buildings providing a public service but not for human habitation, e.g. bus shelter.
VII. The provision and maintenance of public utilities/services, military buildings, silos *etc.*
VIII. When the existing and proposed development are in the same use group, *e.g.* a hardware business being replaced by a clothing shop, converting a dry cleaner's reception depot into a shoe repair shop, *etc.*
IX. The maintenance of any building.

2.0 Development Permissions

In terms of the Regional, Town and Council Planning Act [Chapter 29:12] a permit is required before any development or a change of use of any property is undertaken. *Section 26* of the Act lays down the permit application procedure. The application is made to the Local Planning Authority. It is a very detailed application. A person about to embark on development must obtain a stand or plot and/or a lease agreement from the local authority.

In urban areas, stands are surveyed and pegged for individual use but they must be subject to lease agreement between the developer and the local authority. The lease agreement does not give the developer any rights to begin building; however, it must be obtained before an application for development is made. An application for development is made to the Local Authority by a developer with the following:-

2.1 The Application Form (TPD)

The forms must be completed in full by the person who wishes to carry out the development and must be signed by the owner of the land or lessee. If the property has a real right registered against the title deed. The title deed of property concerned the title deed should be submitted *and* the written consent of bond holders will be necessary. Forms TDP must be kept in the Councils offices so that they are available free of charge to members of the public. A sample TPD form is shown in Annexure 1

2.2 The Application Fee

The application fees are determined by council by resolution annually.

2.2.1 Building Plans

Building plans drawn to scale showing all the details of the proposed development. The Local Authority usually requires 3 or 4 copies of the building plans. A Local Authority can be approached by a developer in 3 ways:

i. The developer can write to ask if the development proposed requires permission. The Local Authority would have to advise the developer accordingly.
ii. Before spending money on the preparation of building plans a developer may wish to find out if the development proposed would be issued with a permit. A preliminary planning permission application is made which will include the application fee and as much information on the proposed development to indicate the type, size and approximate cost.
iii. The developer will submit a TPD 1 form with the application fee and building plans as required.

A Local Authority must open and maintain a development register for all development applications. A sample development register is shown in Annexure 2**.** All details of the application and each step in the processing of the application must be entered in the Register. The development register should be available for inspection by the members of the public during normal working hours, free of charge.

2.3 Processing a Development Application

Development applications are usually determined by the Works and Planning Committee of Council. Town planning officials prepare each application for the Committee's determination. The officials scrutinise applications in detail to provide sound advice to the Committee. It is important for the correct procedures to be followed in processing applications. The following procedures are suggested:

Step 1: Noting date of receipt of application, applicant's name and proposed development in a Development Register.

Step 2: Examine application contents to decide completeness of application. A complete application includes, among others, the following:

- **i)** A full description of technical aspects of the proposed development with appropriate illustrations or drawings as needed,
- **ii)** Justification either in terms of relevant policy and demand for the development being proposed;
- **iii)** Proof of funding;
- **iv)** Clarity on land rights, and
- **v)** Other policy considerations that a Local Planning Authority may stipulate from time to time

Step 3: If the application is complete, note the amount paid (the application fee) and forward a receipt and an acknowledgement to the applicant within 5 working days. Advise applicant that if they do not hear from the Local Planning Authority within 4 months then the application will have been deemed approved. An example of a standard letter used on the City of Bulawayo is shown in Annexure 3.

If application is incomplete, send all the contents back to applicant advising them of application's incompleteness and how they can remedy or improve their application for proper processing by the Local Planning Authority

The notification of application completeness shall be accompanied by standard procedures for processing of development applications. The notification/letter shall refer to relevant procedures depending on the nature of the application. Some of the information may include procedures for public consultations with owners of abutting properties as well as other interested or affected persons who will be notified as required. Annexures 4 and 5 show relevant examples on how consultations are facilitated.

In the event of notices being require these shall to be published by the applicant at their expense in one issue of a newspaper circulating in the area. A certificate by the newspaper in which this notice appears shall be furnished by the applicant to the Local Planning Authority within seven days of the advertisement otherwise consideration of the application may be delayed.

Step 4: For complete applications this step involves production and submission of a report by the Planning Unit for consideration by the relevant Council Committee The Report shall cover spatial and economic planning matters only.

Step 5: The Works and Planning (or such other relevant) Committee of Council meets to decide on the application. An appropriate officer shall present their assessment of the application making technical recommendations as to the suitability of the proposed development. The Committee adjudicates on the matter and either recommends adoption or rejection of the Planning Unit's recommendation regarding planning permission.

Step 6: This stage involves presentation to Council of the application by the Committee with its recommendations. Upon adoption of the Committee's recommendation by Council the Office of the Town Clerk shall initiate appropriate implementation of the Resolution.

Step 7: This involves processing and communicating the decision of Council with an applicant. Where the application is approved the Office of the Town, in close liaison with the Planning Unit/Office shall process issuance of a Development Permit with relevant planning conditions attached.

Where not granted the communication shall be made with the applicant within seven days of the Resolution being made with reasons for refusal of Development Permit. The communication shall also state the applicant's right to appeal to the decision at the Administrative Court within 30 days of the decision.

Step 8: This step involves implementation of the development in compliance with the Permit issued. The Local Planning Authority shall take all necessary measures within the limits of resources available to it to assist the applicant to follow all proper spatial planning and development procedures.

2.4 Determining an application

Considering the merits of a planning application is the most important aspect of processing a planning application. The key factors that are looked at based on the application or any additional inquiries with the applicant or other appropriate sources of information are outlined below.

2.4.1 Building Plans

These must be properly drawn. The building proposed must look reasonable in terms of its construction, surrounding buildings and environment. The plans should be made available to all relevant departments within and outside Council applying easy of doing business, which may require holding of 'One-Stop-Shop' sessions where all those required for purposes of appraising applications meet together. Such one-stop shop will comprise of:

i. Town Planning
ii. Land survey
iii. Traffic and Transportation
iv. Highways and Works
v. Health
vi. Fire Engineering
vii. Housing, and
viii. Other public institutions such as water, power and telecommunications utilities, education, the Factories Inspectorate and other as relevant to the applications being appraised.

2.4.2 Conflict of Use

The proposed development should not interfere with established land uses. Wherever possible it is important to segregate different land uses to maintain shops with shops and houses with houses etc. where no appropriate measures are instituted as part of a Development Permit. This is because it would be bad planning practice and a nuisance to allow a liquor outlet to be developed beside a place of worship e.g. a church, synagogue or mosque.

2.4.3 Multiple Stand Use

Multiple stand use is allowed where the uses fall in the same use group and are appropriate in terms of the land use zone in which the stand is.

2.4.4 Conformity with an Approved Layout

The proposed development should fit within a layout prepared and approved for the particular area. A layout provides planned distribution of land uses (housing, industry, commercial, etc.) that complement each other and are designed with regard to the future cost effective provision of services within a framework of environmental fit and sensitivity. Approved layouts should be respected in every regard with particular consideration of stand sizes, land uses and planning principles established for the area.

2.4.5 Consideration of Traffic Circulation

A proposed development adds to and alters traffic circulation and mode. In approving it care has to be taken that such changes actually or likely to arise from the new development will be appropriately accommodated by the existing infrastructure and traffic management systems in place. Regard should be had to surrounding land uses and other built environment features. For instance, it would be bad planning to allow development of a liquor outlet at a busy traffic intersection.

2.4.6 Uncoordinated Development

Permit issuance is a key instrument for facilitating coordinated development. Where coordination is a conscious result being sought a Local Planning Authority will use permit issuance to allow proper sequencing of development including provision of appropriate services. For instance, commercial and other job-creating land uses are best encouraged before any other land uses. Where permits are issued in an uncoordinated manner the resultant development will equally be uncoordinated. Once issued, all developments should be as per approved plans to avoid uncoordinated development. Further, compliance with statutory schemes or zoning regulations should be enforced.

2.5 Issuance of the Development Permit

Once planning permission to develop is granted by Council Town Planning officials issue a permit, a legal document. The permit should be drafted very carefully to specify an applicant's development rights and obligations. In this respect a permit should contain the following:

- File reference number.
- Permit number.
- Name of applicant.
- Stand number or other legally distinct description of the land concerned.
- Description of the permitted development.
- Reference to the relevant development conditions with copy attached.
- An outline of the applicants' rights and obligations within planning law.
- The date of issue and the signature of the issuing officer.

It is recommended that the Development Permit Format shown Annexure 6 is followed as closely as possible. Annexure 7 is the recommended format for notes attached to a Permit.

2.10 Planning Conditions

All applications are approved by Council with development conditions. These vary but in all instances must relate directly to the proposed development and its proper implementation. They relate to the test to which a development is put by the Local Planning Authority with regard to:

i. Necessity
ii. Relevance to planning
iii. Enforceability
iv. Precision
v. Reasonableness

Council sets development conditions that will ensure the highest standard of development for the community in its area of jurisdiction.

3.0 DEVELOPMENT ENFORCEMENT

3.1 Introduction

The law sets out the procedure to be followed by a Local Planning Authority in deciding on development applications. The mechanisms defined in the law are allow Local Planning Authorities to regulate development. This is how they are able to protect and/or advance individual rights in society based on facilitating and managing orderly development. Development enforcement is about managing the processes leading to and beyond the granting of permits. It thus involves ensuring that the Local Planning Authority has a sound understanding of relevant policy and law, the local, national and international development context as well as the aspirations of the residents of its area of jurisdiction.

3.2 Illegal Development

Based on the law illegal development is unauthorised or whose implementation overstepped any duly issued development conditions. This is development that will not have gone through the consideration, approval, monitoring and post-implementation management processes of a Local Planning Authority or other relevant state institutions with a planning purview.

The carrying out of development without planning permission is illegal and this must be controlled by the Local Planning Authority. *Section 32* of the Regional, Town and Country Planning Act [Chapter 29:12] sets out the procedures for dealing with unauthorised development. If any person (natural or juristic) commences any activity without a duly issued development permit or ignores the terms of a permit, conditions of title or develops in a way which is different from approved plans or permit given, would be committing an offence and the local authority should take action against the developer.

For instance, if any person commences construction work or changes the use of a building without first obtaining a permit or does not built in accordance with approved plans then an offence is being committed. The local authority may issue an enforcement order on the owner or occupier of the land. It therefore follows that any development that has taken place without permission or is not permitted in terms of the Regional Country and Town Planning Act [Chapter 29:12], is illegal and the Local Planning Authority must issue an enforcement order on the person carrying out the development.

3.3 Enforcement Order

An Enforcement Order is served on the owner of land and/or the person carrying out the development. If the person carrying out the development is the owner of the land then the order applies to the land and any successors in title. The Order must state:

a) The type of development that is considered illegal.
b) The policy, law or conditions that the development contravenes citing relevant provisions.
c) Define the actions that the person must undertake to correct the illegality. The Local Planning Authority can require that :
   i. The development be regularised e.g. a permit application made.
   ii. The buildings be demolished and land restored to its original state.
   iii. The unauthorised use of a building cease.
   iv. Any action that must be taken by the person.
d) State the date by (or period within) which the action must be completed.

An Enforcement Order comes into effect 30 days after it was formally served unless there is an appeal made against it. The Order may be served on the person by hand, by registered post or by fixing it to the premises if the person is not available. A Local Planning Authority may publish the Enforcement Order in a newspaper if it applies to a large group of people. It is also possible for a Local Planning Authority to use at least two notification methods to ensure that the offending person does not have an

excuse regarding receipt of the Order. When the Order becomes operative, the Local Planning Authority must send a copy of the Order to the Registrar of Deeds for endorsement on the Title Deeds. An Operative Enforcement Order remains in force against the development until the remedies stated are in the Enforcement Order effected and an appropriate Development Permit has been issued to prevent the illegal development recurring. Annexure 8 shows the format of an Enforcement Order.

3.4 Prohibition Order

Some illegal developments may be so serious and likely to cause injurious effects to the public and the environment that a Local Planning Authority must put an immediate stop to them. In such circumstances the Local Planning Authority cannot wait for the Enforcement Order to become operational i.e. 30 days. In such cases the Local Planning Authority can issue a Prohibition Order. A Prohibition Order must:

i. Be served together with or immediately after the Enforcement Order i.e. becomes the latter becomes operative.
ii. Specify a date on which the Order comes into force notwithstanding any appeal against the Enforcement Order.
iii. Deal with the same issues as the Enforcement Order.
iv. Cease to be operative upon the Local Planning Authority withdrawing it or when the Enforcement Order becomes operative.

The Local Planning Authority must carefully consider the use of a Prohibition Order because it may be liable to compensation if an appeal on the Enforcement Order is successful. The Local Planning Authority must also be prepared to take the necessary legal action to ensure the successful implementation of a Prohibition Order. The format of a Prohibition Order is as shown in Annexure 9:

3.5 Non-Compliance with Orders

When an Enforcement Order becomes operational, it must be complied with. If it is not complied with by the person on whom it is served, the person is committing a criminal offence. The Local Planning Authority can prosecute a person who is not complying with an Enforcement Order and if convicted by the Criminal Court, the person is liable to pay an appropriate fine, to serve an appropriate prison term, or both.

If a Local Planning Authority requires that the development must be removed, it can send its employees onto the land to implement the Enforcement Order provisions. Since the Local Planning Authority will be spending money, it may take legal action to get back the money that it has spent.

It is very important for the Local Planning Authority to give its employees instructions in writing so that the employee and person against whom the action is taken knows exactly what he/she is authorised to do. If an employee acts negligently or beyond their powers, the Local Planning Authority could be liable for compensation.

3.6 Appealing Local Planning Authority Decisions

Any development management/control decision by a Local Planning Authority may be appealed against. An appeal is made to the Administrative Court and must be made within 30 days of the date of the decision. The Administrative Court will only entertain appeals on town planning grounds or on unlawful and unreasonable conduct by a Local Planning Authority. An appeal can seek the Administrative Court to suspend a Local Planning Authority's decision (permit refusal, enforcement order or notice). Where an appeal is successful the decision of the Administrative Court is final. It must be noted that a decision of a Local Planning Authority can only be challenged by an appeal to the Administrative Court.

3.7 Development Management/Control Checklist

Local Planning Authority officials deal with many development applications. To streamline processes of determining the applications, the Handbook suggests a checklist. It comprises explanatory notes on what has to be done in receiving and determining applications. This can be represented in the form of a flow chart so that each step follows the next from a permit application to an appeal. Further to this, each of the steps in the checklist are individually important.

Step 1: Council receives application through Town Planning services and checks its completeness.

Step 2: Town Planning does due diligence on the application which entails checking the files, compatibility and statutory provisions

Step 3: Acknowledgement of complete application and drafting adverts for publicity (abutting owners' notification and consultation, submission of proof of notification and publicity for Special Consideration Application)

Step 4: Internal and external consultations (it is encouraged that, in the spirit of Ease of Doing Business, this will be done through a one stop shop process).

Step 5: Advice applicants of any objections or representations with requirement for a response within 14 days from the date of receipt.

Step 6: Report to Council Committee if it is a Section 26 (3) application for a recommendation.

Step 7: Council Resolution

Step 8: Issuance of Permit with conditions as informed by representations and objections and also guided by Town Planning standards copying all abutting owners' objectors and all those consulted

Step 9: In case of refusal advise applicant giving reasons.

Step 10: Compliance monitoring/certification

Commented [KC1]: To compare with steps in Section 2.3 and evaluate whether the handbook needs more than one process

Each step requires a number of functions to be performed by the Local Planning Authority official and it is suggested that response boxes be used for checking each step. The official will tick or place a cross in each box depending on the result of the response at each step. If a step has successfully been completed a tick is placed in the box. This checklist has the value of assisting officials to check each application and the checklist should be used as a guide. A development check list is shown in Annexure 10.

4.0 BUILDING PLAN APPRAISAL

4.1 Introduction

One of the main prerequisites for a development application submitted to a Local Planning Authority is a building plan. Authority staff have to be familiar with the procedures required in appraising a building plan in addition to the content of the plan and the operative statutory plans. In order to appraise a plan, the official must know the regulations covering all buildings in Zimbabwe and more specifically aspects of the Model Building By Laws, the Minimum Health Requirements, and where applicable the Liquor Licensing Board Regulations, and the provisions of the Factories and Works Act [14:08]. In addition, when a Building Plan has been approved, each stage of its construction must then be inspected during construction.

4.2 Building Plan Contents

The building plan must consist of plans, drawings and specifications showing the details of the proposed building. More specifically the plan should contain:-

i. Site plan
ii. Floor plan
iii. Section
iv. Elevations
v. Notes and Specifications

The arrangement of the contents of the building plan must be shown clearly. The title of the building project, the name of the client and the place (property description) of the project must be shown on the building plan together with the date and name of designer/architect. A typical Building Plan is shown in Figure 1.

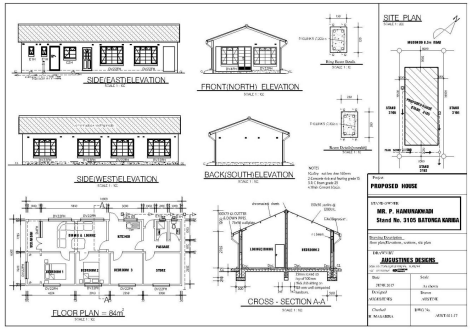


Fig.1 - A typical Building Plan

4.2.1 Floor Plan

The floor plan must show the position, form, dimension and materials used in every part of the building. A typical floor plan is shown in figure 8.

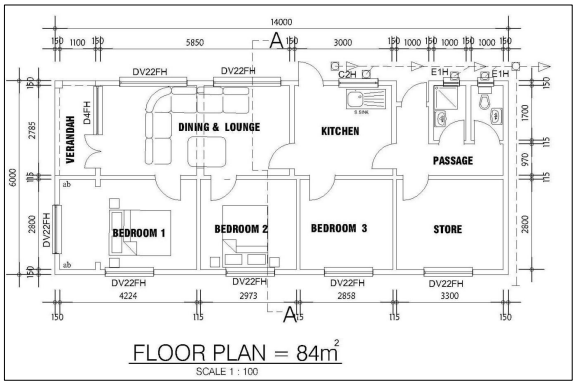


Fig 2. Typical Floor Plan

It is important for the Council official processing the application to note the following:

a) Every wall, window, door, cupboard must be dimensioned in millimetres (mm) and these measurements need to be checked carefully. The position of the doors and windows are very important for air circulation.
b) All rooms need to be named in terms of their purpose e.g. a bedroom, storeroom, reception etc. If the building has more than one floor, each floor plan must be shown.
c) The overall dimensions of the building need to be placed at the edge of the floor plan.
d) Air bricks for ventilation need to be indicated on the elevations. A minimum of two air vents per room is required and they should not be spaced more than 2m apart. In case of terraced buildings (shops) air vents must be installed on internal walls to allow for cross ventilation.
e) Proposed water and sewage connections to the building must be shown.
f) Changes to the floor levels, steps and staircases must be shown.
g) Window sizes must be measured and compared to the individual floor areas of each room. The minimum size of window permitted, excluding frames, must be 10% of the total floor area of the room. Window sizes and doors are usually contained in a manual of fittings issued by a manufacturer and are assigned codes, e.g. D2H or C4H.
h) Any concrete works or other structural work requiring reinforcement must have detailed drawings and must be signed by a registered Structural Engineer.
i) Existing buildings and proposed buildings, if an extension, need to be clearly shown on the floor plan. The usual colour coding for building plans are:

- Proposed work for **bricks and masonry** Red
- Proposed **concrete work** Green
- Proposed **iron or steel work** Blue

- Proposed **woodwork** Yellow
- Proposed **sewers** Brown

j. Where sections are taken off the floor plan, they must be clearly shown as A-A, or B-B, etc.
k. The floor plan is usually drawn to a scale of 1:50 or 1:100 depending on the size of the building. The scale must be shown on the drawing.
l. The position and number of electrical fittings such as main switchboard, light switches and light fittings, lifts, generators, etc. must be shown on the floor plan.

4.2.2 Sections

The purpose of a section is to show how the building is to be constructed, what materials are to be used, foundation, the height of the building and other relevant structural details. The section should be clearly drawn and is usually done at a scale of 1:50 for clarity. The Council official should begin at the bottom of the drawing (foundations) and work upwards through the walls to the roof details in order to be systematic. A typical section is shown in figure 3.

i. The height of the building from floor to ceiling and ridge must have a minimum of 2 400 mm (2,4m) between floor and ceiling.
ii. Foundations are shown on the sections and should be 3 times the wall thickness. A 230mm wall will require a 690mm foundation and these should be properly dimensioned.
iii. The depth of foundation (sloping ground level) should not be less than 700mm below ground level and the material to be used must be specified.
iv. Damp Proof Course (DPC) i.e. usually positioned at the floor slab level between the bricks or blocks and sometimes at the level of the window sill.
v. The type of foundation will depend on soil types and the section must indicate any abnormal soils such as heaving clays. These will require engineer designed deeper and more expensive foundations.

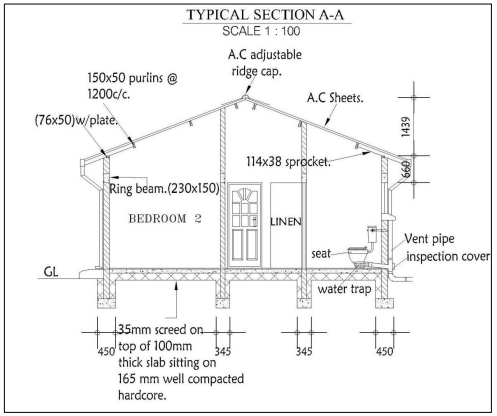


Fig 3. Typical Section A-A, 1:100

vi. The type of floor construction can vary with the type of buildings and usually consists of a concrete slab of 100mm thickness over a compacted hard-core (or soil with rocks) approximately 75mm or 150mm thick. On sloping sites the ground level will have to be shown because there will be excavation of soil to make sure the floor is level. The floor slab can be covered with a 20mm or 30mm cement screed (grano topping) on which floor tiles or carpets may be placed. These details would be shown on the section.
vii. The wall thickness and foundation depth must be shown on the section and also brick size and type. Outer walls of buildings are usually 230mm wide and internal walls are 115mm if the bricks are industrial and farm bricks provided they are plastered both sides. Concrete blocks at a size of 150mm and 100mm are being used more frequently by builders and should be shown on the section.
viii. The floor plan should also include access for people with disabilities in the form of the ramp for public and commercial buildings.

Foundation and floor detail are shown in figure 4.

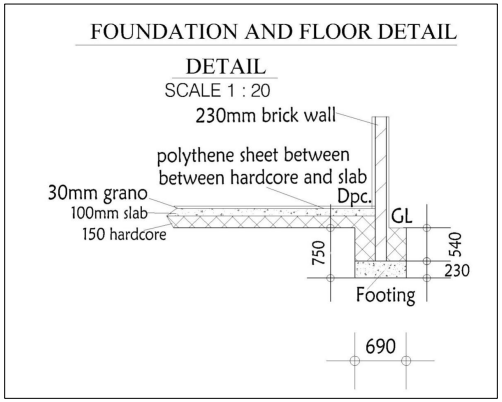


Fig 4.Foundation and Floor detail, 1:20

4.2.3 Wall and Brick Detail

If the material for walls is not specified on the plan, the Council can ask for tests to be taken to determine the suitability of the materials to be used. Reinforced concrete lintels or beams, 1:20, must be engineer designed as they are necessary above window and door frames in all cases. These must be shown on the section and usually measure the width of the wall. Reinforced Concreate Lintel shown in Figure 5.

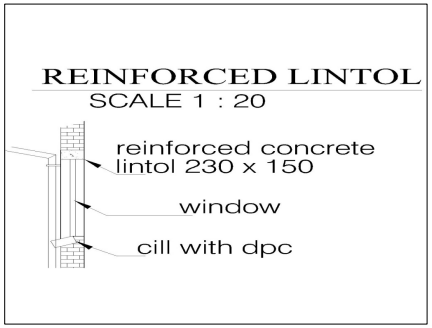


Fig 5- Reinforced Concreate Lintel

The example tables for Standard **Two Course Lintels** reinforcing is presented in table 1.

Table 1- Standard lintel reinforcing

Maximum clear span of opening (m)	Size of reinforcing bar (mm)
1,00 1,25 1,50 1,75	R8 or X6 R10 or X8 R12 or X10 R16 or X12

Notes: Provide one bar as specified per half brick width of wall.
"R" denotes round mild steel
"X" denotes square twisted high tensile steel
R type bars to have hooks both ends
The standard three course lintel specifications are shown in table 2.

Table 2. Standard Three Course Lintels specifications

Maximum clear span of opening (m)	Size of reinforcing bar (mm)
1,50 1,75 2,00 2,25 2,50 2,75 3,00 3,25	R8 or X6 R10 or X8 R12 or X8 R12 or X10 R16 or X10 R16 or X12 R20 or X12 R20 or X16

4.3.4 Roof Details

Roof details should be shown in detail and may vary considerably with the type of building.
A roof has to have a pitch (or angle) to allow for the runoff of rain. The pitch is usually 11 ½ % upwards (depending on roof materials used) and is made by roofing companies which specialise in roof trusses.

The roof truss is a system of timber or metal rafters bolted together to allow for the roof sheets or purlins and tiles to be laid. It is desirable to have an overhang of the roof, of at least 0,6m, over the outside wall of a building to provide shade and protection from the wind and rain. The roof truss is fixed to the wall by a wall plate and the timber is tied onto the wall with galvanized hoop irons, to prevent the roof being blown off in high winds. The roof sheets can be made from corrugated iron or asbestos cement, made to specification by the manufacturers, and are in varying lengths.

The minimum length of the asbestos cement sheet is 1,8m but usually the 2,1m or 2,4m sheets are used. The AC sheets are attached to the roof trusses on purlins, (75mm * 50mm), approximately 1 500mm apart. In areas of high wind velocity it might be necessary to have wind braces or lateral timber beams to support the truss and roof sheets.

If the roof is laid with tiles or slates, the purlins are closer together (approximately 300mm apart) so that the tiles can be laid to be used for the disposal of the rain water. Roof detail is shown in Figure

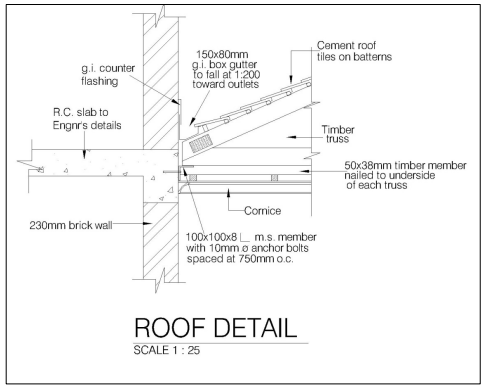


Fig 6: **Roof Detail**

4.3.5 Plumbing

All sanitary fittings such as shower, bath, geyser etc. must be shown on the section.
If the building is supplied with piped water and sewage disposal, the details of the water closet (WC) and sewer pipes connecting into the main sewers or septic tank must be shown. If a septic tank is used, a section must be provided of the septic tank and soakaway to ensure the correct capacity. Sanitary detail is shown in figure 7.

NOTE: The toilets normally used in Zimbabwe have a water cistern with about 11litres/flush. Many countries today install toilets with a volume per flush of about 6-9litre/flush and sometimes, under special conditions, toilets with a flush of only 1-2 litres are used. When looking at the total average consumption for a household, it is possible to reduce the consumption by 15% in a high density area, if the volume of the water/flush is about 7-8 litres instead of 11 litres. (Try to reduce the volume/flush in existing toilets, e.g. the floating valve level).

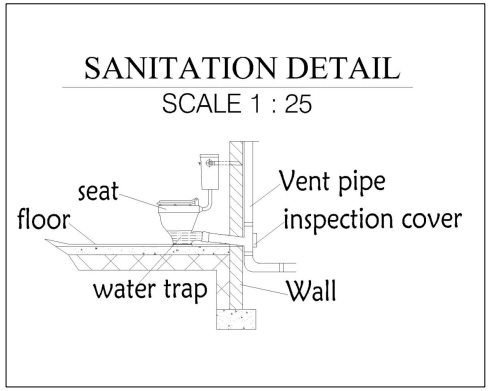


Fig. 7: Sanitation Detail

If the building is not provided with sewerage disposal, the site plan must show the position of septic tank and soakaway and construction details must even be shown as in figure 8.

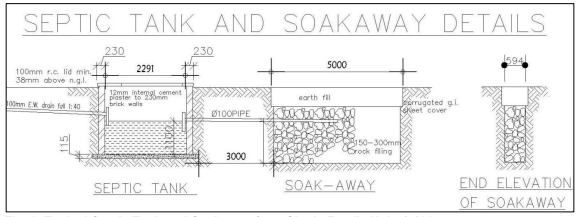


Fig. 8. Typical Septic Tank and Soakaway for a Single Family Unit, 1:100

It is important for the Council official to ensure that there is a drawing of the septic tank and soakaway and that the drawing shows the size and type of materials to be used.

4.3.6 Elevations

There are four elevations needed for every plan: (and the description must include cardinal directions i.e. East, West, North and North)

- Front
- Rear
- Side elevations

The elevations must strictly reflect the floor plan and the section so that the building can be shown as it will be constructed on the ground. A typical elevation is shown in figure 9.

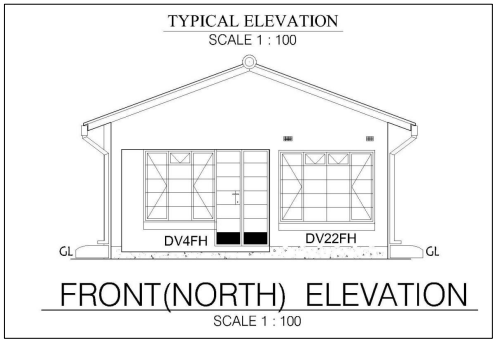


Fig 9. Typical Elevation

The external finish of the walls and positions of the windows (opening and non-opening) and doors, all roofing material, guttering, down pipes and air vents etc. should be shown on the drawings. It is important for the Council official to look at the external appearance of the building and the materials used to ensure it blends in with the environment for which it is intended, for example, corrugated iron roofs and unplastered or unpainted walls (excluding some type of bricks) should perhaps be avoided if they detract from the surrounding buildings and can become visually unpleasant.

The finished ground level and Natural Ground Level (NGL) must be shown on the elevation so that the extent of excavation can be assessed. Boundary lines and walls must be shown on the elevation at the same scale as the floor plan.

4.3.7 Site Plan

The site plan has to show the position of the principal building and outbuildings in relation to the boundaries of the stand and/or existing buildings. It is usually drawn at a different scale to that of the floor plan. Elevations and sections can be:-

- 1:100 to 1:500 if the site is less than 1 hectare in extent or

- 1:500 to 1:2000 if the site is more than 1 hectare. Where necessary inserts can be used to show detail.

It can be included on the building plan or be a separate drawing depending on the size. Figure 10 shows a typical site plan.

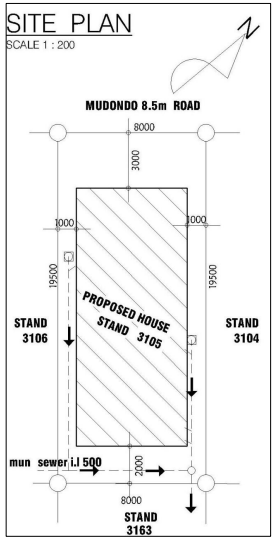


Fig 10: Typical Site Plan

More specifically the site plan shall include the following:

i. The exact location of the site with respect to the name or stand number, names of the surrounding roads and the dimensions of all boundaries on the site including any cadastral or survey information (pegs).
ii. The nature and position of all existing natural features such as water sources, rivers, rocky outcrops, trees and all existing man made features such as electricity lines, telephone lines, sewers, water mains, cables. The point of access into a public road can be indicated on the stand boundary.
iii. The position of any building lines that are applicable from a Town Planning Scheme, Master, Local or Development Plan. The building lines vary considerably from road frontages and side

boundaries. It is very important for the Council official to check these building lines with their relevant town plan.
iv. The existing buildings on the site and on surrounding land must be shown on the site plan (usually hatched). Where steep land is to be encountered the site plan must show existing contours or levels.
v. If the development involves a building with septic tank and soakaway, the position of the septic tank and soakaway in relation to the building must be shown. A septic tank is usually a minimum of 10m away from any building.
vi. The plan must show the position of north and it is important for the building to have the correct orientation. Usually buildings in Zimbabwe have a northerly or north-easterly orientation which allow for the building to be cool in summer and warm in winter. The location of entrances will even be shown.

4.3.8 Notes and Specifications

A building plan is never complete without notes and specifications to explain how the building is to be constructed. Usually the Notes and Specifications are contained on the individual drawings of Section, Elevation and Floor Plan but can also be listed as a separate section. The Notes and Specifications should provide the following:

i. The type of materials to be used in all of the building. Each building may use different materials and these have to be specified on the building plan.
ii. The Council official may find that some of the material to be used is undesirable and may request a change to the type of material specified. Generally the materials will apply to concrete, walls, paint, plaster, timber, roof sheeting, sanitation fittings etc.
iii. The specifications give the building a certain quality to finish and therefore provide a standard of construction.
iv. The Notes and Specifications will provide a guide to the building contractor for the construction of the building. The building plan will not achieve its purpose if it cannot provide these guidelines to the builder.
v. The specifications can provide specialised details of the building which cannot be shown on a normal plan, section, elevation or a site plan. A building may require a specialised roofing plan or foundation plan, specialised reinforced concrete work, timber cladding or thatch.

If specialised work is required, the Notes and Specification must be included on the building plan, or may be shown separately. Typical notes are shown in figure 11, 12 and 13.

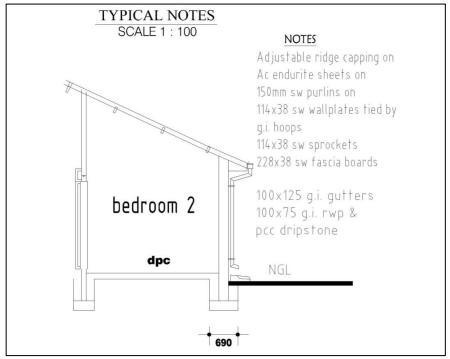


Fig 11Typical Notes on Building Plans

A Council official may not understand some of the details of the Specifications and may request clarification from the developer and will have to consult specialist (architects, quantity surveyors or engineers).

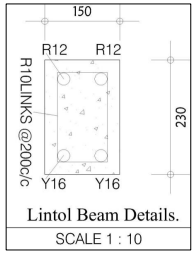


Fig 12: Typical Notes on Specifications

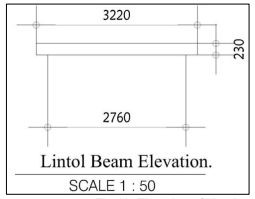


Fig 13: Elevation of Lintel

The Notes and Specifications also provide the dimensions for each part of the building. This is very important because it will indicate the size of building and of specific materials to be used such as roof trusses, purlins, bricks/blocks, foundations, etc.

All building plans are drawn with a provision for revision or amendment. The Notes and Specifications must indicate a space for the revisions and amendments to the plan.

4.3 Building Plans Relating to Factories

Where a plans relates to a premises to be used as a factory. Provision of the Factories and Works Act [CHAPTER 14:08] should be complied with in addition to other requirements that apply.

Section 9 (4), which states: *"Where an application is made to any local authority or officer for the approval, in terms of any enactment, of any plans for the erection, rebuilding or alteration of any building used or intended to be used for a factory, such local authority or officer, as the case may be, shall submit such plans to an inspector for examination by him and shall not approve such plans unless the inspector has notified the local authority or officer, as the case may be, in writing that he considers the building will be suitable for use as a factory of the nature proposed."*

A local authority is defined by the Factories and Works Act [CHAPTER 14:08] as a city council, municipal council or town council. A factory is defined as a premises on which more than 5 persons perform functions that make, alter, repair, renovate, ornament, paint, spray, polish, finish etc. any article for sale. It is suggested that officials use their discretion when appraising building plans of an industrial nature and call on the Factories Inspectorate where necessary.

4.4 Building Inspectorate

Once a building plan has been approved by a local authority, the building is constructed by a building contractor and the local authority must perform the function of Building Inspectorate.

This function is extremely important to ensure that the building conforms to the building plan that has been approved. Therefore it is necessary for a local authority to understand the procedure, periods of inspections, certificates, criteria used and has the personnel needed for inspection.

4.5 Building Plan Appraisal Checklist

The appraisal of building plans is a difficult task and the provision of a checklist may assist the Council officials on a day to day basis. The checklist that has been devised comprises the following:

i. The procedure of dealing with an application from receipt to approval and the issuing of a Certificate of Occupation.
ii. A number of items to check at each stage.
iii. The receipt of the application.

iv. The Minimum Requirements from the Health Standards, Town Planning, Liquor Licensing, Factories Inspectorate and any other Laws that may prevail in the urban areas.
v. Contents of the Building Plan (Floor Plan, Section, Elevation and Site Plan).
vi. Approval or refusal with various options (extensions, time, conditions, etc.).
vii. Building inspection stages and issue of a Completion Certificate.
viii. Each item to be checked at each stage has a response box where the Council official may tick/cross when the stage is complete. Where necessary, the checklist has space for notes to be added when specific requirements are needed at the different stages. A building plan appraisal checklist is presented in Annexure 11.

5.0 OTHER STANDARD REQUIREMENTS FOR BUILDINGS

5.1 Introduction

There are a number of standards and regulations in Zimbabwe which apply to any new building. In order to assist in the understanding of the relevance of these standards and regulations brief notes are given for Health Minimum Requirements, Model Building By-laws, Housing, Liquor Licensing and the Factories and Works minimum requirements. Local Planning Authority are encouraged to obtain full copies of the regulations, standards and guidelines from the relevant organisations for internal reference.

5.2 Common Minimum Health Requirements

All Local Planning Authorities are expected to have their own public health by-laws. However, in the absence of such, the Ministry of Health and Child Care Minimum requirements for premises shall be applicable. The standards cover all aspects of public safety and hygiene in buildings. The available minimum requirements apply to crèches, butcheries, general dealers, eating houses, schools, bakeries, bottle stores, beer halls and hairdressers shops among others. Although they have not been gazetted, they are used widely by Environmental Health Practitioners and may be enforceable by law. There are some common standards for all the uses and some that are unique to the particular use. These are listed separately.

5.2.1 Ventilation

The window area in each room should not be less than 10% of the floor area of any habitable room to allow for natural lighting. At least 50% of the windows should be made to open so that there is adequate cross ventilation in each room of the building.

5.2.2 Sanitation and Refuse

All buildings shall be connected to the Council water supply or a water supply approved by the Council. Water closets (toilets) connected either to town sewers or a septic tank must be provided for use by staff and visitors. All public toilets should be accessible to people with disabilities and also be gender sensitive e.g. provision of nap changing stations and urinal or commode. The number of water closets (WC) is determined by the number of persons occupying and/or using the building. The guideline is 1 WC per 16 persons. Except for a family dwelling, there must be separate toilets for men and women.

All waste water must be discharged into the sewers or septic tanks and all refuse must be disposed of into standard refuse receptacles. An approved refuse receptacles area must be provided

NB: All the plumbing works to be done by qualified and competent artisans and registered with Local Planning Authority.

5.2.3 Hygiene

A reticulated water supply shall be provided. A wash hand basin with an adequate supply of piped water connected thereto shall be provided for use by staff. Suitable and adequate dust proof storage shall be provided. All counters and tables shall be constructed of stainless steel, concrete or other suitable impervious material.

5.2.4 Floor Area

The minimum floor area required in each building type:

Crèches $3m^2$ playing floor area per child, $8,3m^2$ resting area per child and $17m^2$ per infant. *(for further discussion by the house, to refer to relevant statutory instrument)*

Bakery and Butchery	30m^2
Bottle store	20m^2
Eating house	30m^2 eating area and 14m^2 kitchen area.
Schools	60m^2 per classroom and 3,75m^2 per child in a hostel.
Hotels	9m^2 for single bed rooms or 13m^2 for double bed rooms.
General Dealer	27m^2
Beerhalls	40m^2

5.2.5 Construction Detail

5.2.5.i Wall

All walls shall be constructed on solid foundations, which shall not be less than three times the thickness of the superimposed wall carried up to a plinth which shall be not less than 15cm above the ground level and which shall be constructed of burnt brick, pre-cast concrete blocks and shall be not less than 3,30m in height, as measured from the floor to the wall plate. All external walls should be a minimum of 230mm if burnt brick and 150mm if concrete blocks, and the internal surface of walls may be plastered with cement mortar.

5.2.5.ii Floor

The floor shall be a minimum of 100mm concrete cast on 150mm of rammed hard core.

5.2.5.iii Roof

The roof shall be weather proofed and may be constructed of corrugated iron IRBR sheets, asbestos or other approved material. Adequate disposal of rainwater must be made through guttering, down piping and the slope of the roof.

5.2.5.iv. Storage

Storage of food stuffs in food premises should be kept in separate rodent proofed storeroom and any display of food shall be contained in a properly constructed, dust proof and fly proof display cabinet.

5.3 Minimum Health Requirements for Specific Buildings

5.3.1 Bakery

The openings of all oven furnaces shall be situated outside the bake houses and shall be not less than 2m from any door or window in the bake house or storeroom.

The premises shall not form part of or communicate directly with any other premises in which processes other than those connected with the handling of food are carried off.

Approved facilities shall be provided for the washing and sterilising of recipes and other containers used in the handling of food.

5.3.2 Restaurants, Hotel, Tea Room & Boarding House

Kitchen accommodation which includes wash up areas shall be provided with floor area of not less than one third of the floor area of the dining room.

Approved facilities for cleaning, cooking and handling of food.

Adequate ventilation for the effective removal of hot air and fumes

Approved sanitary accommodation shall be provided for use by the patrons where food is consumed on the premises.

A dust proof and well ventilated ceiling shall be provided. The external doors shall have rodent proof material covering the door and a concrete apron must be provided for at least 150mm from the door.

A stainless steel sink shall be provided for the washing of implements and there shall be a supply of hot water to keep all linen, crockery and utensils in a hygienic condition. Refuse shall be stored in approved receptacles. The kitchen area shall have means to extract hot air and fumes.

5.3.3 Butcheries

The internal surface of all walls shall be tiled with white glazed tiles to a height of 1,8 metres from the floor. A stainless steel sink shall be provided and there shall be an available supply of hot water for washing counters, implements, floors, walls and the hands of the persons working in the butchery.

All external doors and windows in the butchery shall be fly-proofed by means of gauze netting. The doors shall open outwards and be self-closing. Rodent proof material shall cover the bottom of the door. The thresholds of the door shall be constructed of concrete approximately 150mm wide.

Sufficient metal hanging rails and rust proof meat hooks to accommodate all meat used in the building shall be provided at not less than 0,75m from any wall of the shop.

A thermostatically controlled refrigerated room shall be provided with a capacity of not less than six cubic metres with fitted hanging rails or shelves or racks of non-corrodible material

5.3.4 General Dealers Shops

There are no unique standards applicable and those standards that are common to all uses apply to General dealers/shops

5.3.5 Sanitary Requirements for Colleges and Schools

Water Borne toilets should be provided in the following ratios:-

Boys	**Girls**	
- 1 water closet per 25pupils wash hand basin per 30 pupils - 1 urinal per 25 pupils - 1 wash hand basin per 50 pupils	1 water closet per 20 pupils	1

An overhead water tank should be installed as a contingence measure when there is no water.
Kitchen with impervious floor, dust proof ceiling, adequate cooking and refrigeration facilities, sufficient washing and refuse disposal facilities.

Dining room with impervious floors, adequate tables and chairs and sufficient utensils. Separate dormitories for each sex with a floor space of not less than 3,75m^2 for each pupil. The dormitories should contain separate single beds, adequate storage facilities for each child, suitable separate ablution and sanitary facilities and adequate hot and cold water.

5.4 Model Building By-Laws (1977)

The Model Building By laws were prepared for use by Local Authorities in Zimbabwe. The Minister of Local Government, Rural and Urban Development published the By Laws in RGN 41 of 1978 and Amendment in S.I. 310 of 1985 in terms of Section 183 of the Urban Councils Act (Chapter 19:08). Through Statutory Instrument 37 of 2016; the Model Building By Laws of 1977 were amended to reduce the time it should take a local authority to approve or condemn a building plan from 35 days to 14 days.

The By Laws are guidelines for use by the local authorities in the construction, alteration and additions to buildings as well as for installation of water supply and sewerage systems . Many of the Chapters provide technical information on the standards to which building and sewerage works shall be undertaken.

Once formally adopted by a local authority the Model Building By laws become operative in the area of jurisdiction of the Local Authority. The power contained within the By Laws are enforceable and can be used in a Court of Law.

The Model Building By Laws consists of nine chapters, 44 parts and approximately 450 sections. It is therefore impossible to summarise the contents or to even select relevant sections. The Table 3 identifies the chapters, parts and sections and gives a brief description of the contents as a form of index. Each local authority who adopts the By Laws will have to obtain a copy and become familiar with its requirements.

Table 3. Model Building By Laws List of Contents

CHAPTERS	PARTS	SECTIONS	DESCRIPTION
1	I,II,III	1 – 16	Provision in Acts which are relevant. Guide to use of Model Building By Laws. Aid to interpretation.
2	I - III	1 – 65	Plans and Drawings. Preliminary and General aspects of Building and sewage works.
3	None	I – 6	Structural design and construction.
4	I and II	1 – 23	Building sites, excavations, soil. Conditions and Construction of foundations.
5	I – IV	1 – 82	Masonry of buildings, construction of brick bearing walls, concrete and reinforced brick work.
6	I – III	1 – 29	Damp proofing , water proofing ,roofing materials and glass ,ironing and steel buildings
7	I and II	1 – 25	Materials to be used in provision and installation of water supply.
8	I – III	1 – 13	Natural and artificial lighting.
9	I - VII	1 – 96	General Requirements for sewerage and plumbing work. Quality, quantity, materials, capacity construction, clearing, inspection and testing of sanitary fittings, pipes and accessories. Septic tanks and private disposal plants, storm water drainage.
10	None	1- 14	Ventilation. Requirements of rooms, (habitable and non-habitable), parking garages and lift cars.
11	I – V11	1 – 61	General requirements for all buildings in fire protection, extinguishing and fighting. **NB**: This is being revised by the Construction Industry Federation of Zimbabwe.
12	I - V	1 – 27	Public safety in building works , high chimneys ,spires , masts , projections , cranes etc.

Local authorities to ensure should resolve adopt the model building bylaw before using them.

5.5 Minimum Housing Standards

The Ministry of Local Government, Public Works, and National Housing formulated a set of minimum standards for housing in order that every family is housed in adequate and decent housing. The minimum standards are:

i. The minimum stand size is 150m^2, usually 10m by 50m. (Also consider densification as provided by Circular 70 of 2004)
ii. The minimum plinth size of a house is 50m^2 and each room shall be larger than 6m^2.
iii. The house shall have a minimum of 2 rooms consisting of 1 bedroom, 1 kitchen, and a flush toilet and shower.

Each house can vary in design depending on individual tastes. The Ministry of Local Government, Public Works and National Housing have designed a number of standard houses for use by local authorities, parastatals and individuals. General criteria are:

i. All houses are to be free standing, detached or semi-detached.
ii. All houses to have a separate room for preparing food.
iii. All houses to have a toilet and a shower which can share the same space but have separate drains and have sufficient room to incorporate a bath tub in the future.
iv. All approved house plans to show a minimum of kitchen, bathroom and 1 other room.
v. All houses to be expandable to have scope for transformation.
vi. All houses to be of single storey design to facilitate construction by aided self-help techniques.
vii. All plans to permit phased construction without excessive demolition work.
viii. All houses to be built of burnt brick stabilised soil, cement block masonry units with metal, tile or asbestos cement roofing.
ix. Where water reticulation and sewerage disposal is provided, the bathroom and toilets can be provided in the house.

The house shall be placed on the stand in such a way that there is space at the front, back and sides of the house. The minimum space requirements, called building lines, are usually 3m at the front 2m at the back and 1m sides. If a wall has no doors or windows at the side it may be constructed at 0,5m from the stand boundary.

5.6 Liquor Licensing Regulations

The Liquor Licencing Board was set up under the Liquor Act (Chapter 14:12) for the purpose of controlling the issuance of liquor licences.. In order to provide guidelines for the Board, Regulations have been gazetted for a variety of liquor outlets. There are minimum standards which are common to liquor outlets. These include:-

i. Water supplies
ii. Ventilation
iii. Lighting
iv. Sanitation
v. Refuse
vi. Fire
vii. Insurance
viii. Communication
ix. Uniforms
x. Maintenance
xi. Staff accommodation (where applicable)

More specific standards are required for hotels, restaurants, nightclubs, airports, theatres, sports and cultural clubs and bottle stores. When a liquor licence is required by an applicant, plans are submitted

to the Liquor Licensing Board for approval. The premises to be licensed must conform to the appropriate regulations .Local Authority officials should obtain a copies of the appropriate Liquor Licensing Regulations and minimum requirements.

The regulations also make provision for specifying the population capacity and sanitary conveniences required in types of public buildings such as cinemas, theatres, assembly halls, bars, restaurants, nightclubs and stadia. These vary with size of building and give guidelines for the number of persons per square metre of floor space and the number of water closets, urinals and wash hand basins per persons. These are usually read in conjunction with Model Building by laws (1976).

It is recommended that Liquor outlets at any given commercial centre shall not exceed 25% of the number of licensed premises of any type.

5.7 Approval of Building Plans

An appropriate council official *(usually the Director of Works or equivalent)* must sign the building plans once they have been approved. It is advisable to have a simple stamp made which shows the approval of building plans.

Usually a local authority gives an applicant 12 months in which to begin the construction. It is important to make sure that the construction has commences in that period.

When the plans are approved, the local authority may endorse the plans for inspection purposes in addition to the approval stamp. The "inspection stamp" may be in the format presented in Annexure 12 look like the specimen shown on the next page:

5.8 Frequency of Inspection

The inspection stamp/ checklist have nine stages that require endorsement of a building inspector. At each stage the building inspector must be satisfied that the contractor has done the construction according to requirements.

In many cases each inspection stage can require a number of visits to be made by the inspector. The building contractor may be required to change or improve on certain aspects of workmanship and these changes need to be verified. There is therefore, a need for follow up inspections in addition to the routine inspections.

Many building contractors and applicants will do their best to have everything on their building site to perfection only on routine and follow up inspection days. This may result in buildings being incorrectly checked. Therefore, there is need to do spot checks or informal inspections of the building.

The size of the building will determine the number of inspection visits needed and the frequency of visits. However, a routine check should be made twice a month on most medium sized buildings.

The criterion used for assessing the building progress is contained in the Model Building By Laws and a Building Inspector needs to be familiar with its provision. A Checklist (Annexure 14) is provided as a guide as shown:

NB. The local Authority may approve the occupation of a building before the whole building has been completed, subject to meeting basic minimum sanitation requirements and any other conditions as the Local Authority may impose.

5.9 Occupation Certificate

The building inspection stamp will provide sufficient certification of progress in building construction. However, there is a need for the local authority to issue a Certificate of Occupation when the building has been completed and connected to the council services.
An applicant may not occupy the building until the certificate is issued by the local authority. In same local authorities there is a team comprising of Building Inspectors ; Environmental Health Officer and Plumbers who do the final inspection of any building for the issuance of an occupation certificate. A Sample Certificate of Occupation is shown in annexure 12.

6.0 ORGANIZATION & MANAGEMENT OF TOWN PLANNING OFFICE

6.1 Introduction

The Town Planning Office (TPO) is charged with the responsibility of ensuring the orderly and progressive development of land in local authority areas. The activities pursuant to this mandate are undertaken in accordance with the provisions of the Regional, Town and Country Planning Act [Chapter 29:12]. The primary functions of the TPO include:

i. Preparation and monitoring of physical development plans.
ii. Controlling the development of land having regard to proper planning standards and environmental management practices
iii. Monitoring of development activities and enforcement of development management/control

6.2 Components of Town Planning Office

A typical town planning office comprise of:

i. Development management/control Section - Processes applications for planning permission; undertakes assessments and evaluation of applications in relation to the appropriate policy and development standards and makes recommendations or decisions on these applications.

ii. Forward Planning Section - Responsibility for the preparation of physical development plans, the co-ordination of policy studies and direct participation in special planning projects and studies and the development and management of information systems. The policy division provides planning and property advice to Council; develops standards and policy guidelines and prepares development briefs. Other functions include participation on committees and the collection and compilation of information on the activities of the TPO and the preparation of performance reports.

iii. Building Inspectorate - Key responsibility is to monitor development and to enforce planning control throughout the Island. The prime functions of this division can be considered to be investigation of complaints, inspection of buildings under construction and issuance of certificates of compliance.

iv. Administration and General Services - Provision of personnel management, administrative, clerical, stenographic and accounting functions. In bigger local authorities other units include:

1. Traffic and transportation planning
2. Estate planning
3. Land Survey
4. GIS/ICT

6.3 Town Planning Human Capital

The work load of the TPO has increased significantly over the years in tandem with the volume and nature of the duties that the office now performs. For the effective discharge of its mandate the TPO needs to be staffed with the following personnel. Depending on the size the town planning section may have the following posts:-

i. The Chief Town Planner
ii. Town Planning Officers
iii. Planning Technicians
iv. Building Inspector (s)
v. Survey Technician (s)
vi. Planning /Technical Assistant (s)
vii. Planning Clerk (s)
viii. Draughtsman

The number of bodies is also dependent upon the size of the local authority.

7.0 SUMMARY AND CONCLUSIONS

Any job aide has a specific focus and target group. This Technical Guideline for Development management/control is intended to assist the development management/control practitioners in the urban local authorities to manage development. In addition to providing an illustrated review of the development management/control process and the technical guideline has provided checklists which can be used by the Local Planning Authority officials for reference. It is important to note that the Development management/control is not only a mechanism for orderly development in space and can be used effectively in their areas of jurisdiction. The Guideline can assist Council officials identify when planning permission is necessary and how to process the application when it is made.

> The Powers given to Local Authorities in terms of the Regional Town and Country Planning Act are wide and the Council officials must realise these powers so that he/she may guide both developers and the general public.

As part of the development process, building plans are necessary to illustrate the development taking place. Buildings can vary considerably from multi-storey and multi-purpose concrete structures in large urban areas to a local commercial centre. . However,

The rules and standards set out for building plans apply universally and the Council official must be familiar with these standards. The Council official will be able to approve or refuse building plan applications more confidently with the help of the Building Plan Appraisal Checklist. It is therefore anticipated that this Development management/control Guideline will go a long way in assisting Local Authorities in Zimbabwe to identify, promote, process, approve and monitor development in a more efficient and effective manner.

References

1. Development and building control manual
2. Model Building By Laws (1978)
3. Regional Town and Country Planning Act [Chapter 29:12], 1976
4. Regional Town and Country Planning Regulations, Nos 925 and 927 of 1976
5. Liquor Licencing Regulations, 1974
6. Atmospheric Pollution Prevention Act [Chapter 318]
7. Basic Development Requirements for the Construction of Buildings within Growth Points and Service Centres in Manicaland, Physical Planning, Mutare 1986
8. Building Projects in Zimbabwe, J. Fredericksen, 1985
9. Development Permit Order
10. Explanatory Notes on Parts III, IV and V of the Regional Town and Country Planning Act, 2985
11. Factories and Works Act [Chapter 14:08]
12. Low Cost Rural Housing Hand Book. DAM Consulting Engineers Italy, 1987
13. Mine and Minerals Act [Chapter 21:05]
14. Minimum Health Standards, 1980
15. Planning Handbook, Department of Physical Planning, 1978
16. Public Health Act [Chapter 15:09]
17. The Zimbabwe Agenda For Socio Economic Development And Transformation (ZIMASSET)
18. What is Development? Department of Physical Planning 1975.
19. Zimbabwe Constitution

Annexures

Annexure 1 Sample TPD Form

CITY OF KADOMA
REGIONAL TOWN AND COUNTRY PLANNING ACT, CHAPTER 29:12
APPLICATION
IN TERMS OF SECTION 26 OF THE ACT
For a Permit for Development

To the..... (Name and address of Local Authority)
I/ We hereby apply for a permit in terms of section 26 of the Act in terms of the particulars given below:-
My cheque/ postal order number...../ of cash in respect of the application fees, in accordance with note 2b, accompanies this application form.
.....
.....
Date Signature of Applicant/ Agent
If signed by Agent:
I
authorize.....
....telephone number..... to act as my agent in the submission of this application.

.....
Signature of Applicant.
Signature of the land owner concerned indication
his/ her consent to the application

PART 1_ GENERAL
TO BE COMPLETED BY ALL APPLICANT AS APPROPRIATE

1 Name and address of applicant a. Surname or Company name b. Other names c. Postal address d. Telephone	 a. b. c. d.
2 Name and address of owner/ lessee(delete inapplicable) a. Surname or Company name b. Other names c. Postal address d. Telephone	 a. b. c. d.
3 Area of site or Property	
4 State: a. The title deed description of the property and street address OR the Stand Number and Lease Number. b. The title deed type(deed of transfer, certificate of registered title or deed of grant) and number.	a. b.
5 Are there any restriction in the title deed which conflict with the developments proposed in this application? Yes or No. If the answer is YES a photocopy of the title deed must be submitted (see note 3).	
6 State: a. The present use of any existing building(s) on the property. b. The last use of the building if presently vacant and the year the building were last used.	
7 State in respect to the proposed development: a. The description of the building and the purpose for which the land and buildings are to be used. If to be used for more than one purpose, give details. And b. Where the building operations are to be carried out, whether the proposal involve:- i. The construction of new buildings.	a. b (i) b (ii)

ii. The alteration of, or addition to buildings (see note 4)	
8 A. State whether the development proposed involves a new access or an alteration to an existing access to the property. B. if YES in A give details	a. b.

PART II
IF THE APPLICATION INVOLVES:-

A. ANY CHANGE OF USE TO THE LAND OR BUILDINGS (Complete Section 9)
B. THE CARRYING OUT OF BUILDING OPERATIONS, ADDITIONS OR ALTERATIONS (Complete Section 10)
C. ANY QUARRYING OR MINING OPERATIONS (Complete Section 11).

9 Give the exact detail of the change in character of the use of the land and buildings. (see note2c and 4)	
10 For any proposed building operations, additions or alteration of state- a. The external floor area to be covered by the proposed building or additions. b. The estimated cost of developing	
11 In respect of any mining or quarrying operations a. Give full details of the surface and underground workings proposed and the surface building operations proposed. b. Give full details of your land restoration programmes where surface workings, quarrying or strip mining are involved (see note 4)	

1. In addition to the information given under question 11, a detailed report on question 11a and b must be submitted, to assist the local planning authority in determining an application involving mining developments.
2. Any relevant additional information in respect of any major developments under part I and II may also be submitted (see note 6)

PART III
ADDITIONAL INFORMATION REQUIRED FOR MULTIPLE RESIDENTIAL, COMMERCIAL, INDUSTRIAL OR ANY OTHER DEVELOPMENT WHICH IS NOT-

a. A SINGKE FAMILY DETACHED HOUSE AND ANCILLARY BUILDING: OR
b. AGRICULTURAL DEVELOPMENT

12 State a. The nature of the proposed use or uses b. The number of floors in each of the buildings concerned c. The total floor area of all the buildings concerned	
13 Give details of the extent and location of parking facilities for:- a. Occupants of the buildings b. Visitors to the Buildings c. Loading and unloading of vehicles.	
14 If the building is to be used wholly or partly for industrial purposes, give details of:- a. The processes to be carried out b. The contents of the trade waste or effluent water that is likely to be discharged c. Any noxious or offensive gas, smoke or dust that is likely to be emitted d. The method of disposal and location of trade effluent or trade waste e. Any noise to be produced f. Whether or not it is proposed to conduct any retail sales from the premises (see note 5)	

In addition to the information given in part III, a detailed report on each questions 12 and 14 will materially assist the Local Planning Authority in determining an application in respect of any major developments (see note6).
NOTES

1. For the application of this form:-
   "applicant" includes the person who carries out the development concerned or will instruct another – e.g. A building contractor – to do so. He need not necessarily to be the owner of the land. If he is not the owner must furnish the written consent of the owner to the application;
   "agent" includes a person authorized by an applicant to act for him e.g., an attorney or architect. When an agent submits an application to the local planning authority will deal only with him;
   "multiple residential development" includes any other residential development other than a detached dwelling house intended for the dwelling of a single family;
   "owner" in relation to private property means the person registered in the Deeds Registry as the owner. The holder of a long lease is not the owner.

2. The application must be accompanied by:-
   a. .....of drawings, showing-

(insert number of sets)

i. All floor plans, the elevations and cross section of all proposed buildings to a scale of not less than 1:100;
ii. In the case of commercial buildings, an elevation of the commercial building together with the elevation of adjoining buildings on each side;
iii. The case of alterations or extensions to existing buildings, all proposed buildings marked in red;
iv. The materials to be used for external walls and the roof of the proposed building;
v. The position of the proposed building in relation to-
   A. Any existing buildings;
   B. The boundaries of the property and the description of the adjoining properties;
   C. Any abutting roads (giving names)
   D. Any watercourse;

   By figured dimensions on a site plan to a scale adequate to show clearly the required information
vi. The position of any existing or vehicular access to the property;
vii. In case of any proposed buildings to which Part III of the form apply, the portion of the site to be set aside and maintained for the parking, loading, unloading or fuelling of vehicles. *(where there are numerous drawings being submitted, the applicant is advised to list all drawings accompanying the application form)*

b. A fee of.....in respect of each property.
   (planning authority to insert amount)
   For which the development referred to this application is proposed.
c. The written consent of the holder of any real rights registered against the title deed of the property concerned, in the case of the proposed development which involves the alteration in-
   i. The character of the use of any land or building; or
   ii. The conditions of title of the property

   Thus written consent of bondholders. Lessees of registered leases, etc., will be necessary in this circumstances.

d. A Photostat copy of the title deed, in case of any development proposed which conflicts with any condition registered against the title deed concerned.
   (where the title deed indicates any condition applicable to the property concerned by reference to another title deed e.g. diagram deed, a Photostat of another deed must also be submitted)

3. It is important that the applicant states specifically in paragraph 5 of part I of the form whether or not the proposed develop will conflict with any conditions registered against the title deed of the property concerned. This information is vital for the local planning authority to exercise its responsibilities correctly. IF INCORRECT INFORMATION IS GIVEN IN THIS MATTER THE APPLICANT MUST BEAR FULL RESPONSIBILITY FOR ANY CONSEQUENCES THAT FOLLOW THEREFROM.
   Apart from the requirements referred to in notes 2c and 2d, the applicant will be required to give public notice of any application proposing development which conflicts with a condition of the title which confers a right that may be enforced owner of another property.
4. Any “development” as defined in section 22 of the Act will normally require a permit from the local planning authority before it may be undertaken. The most important matters falling within “development” are mining and quarrying operations, building operations and alteration in character of the use of land and buildings. However most development associated with the normal agricultural activities carried out on a farm of 100 hectares or more does not require a permit but there are exceptions and these are set out below-
   a. Any building operations which are to be carried within 200m of the centre line of any road declared to be a main or district road in terms of the roads Act[Chapter 263];
   b. Any building operations within an area specifically designated by the Minister by notice in the Gazette as a scenic beauty are in terms of Section 22 of the Act;
   c. Building operations or alterations in the character of use where proposed development concerns the provision of accommodation or facilities for persons employed directly on the farm;

   d. Building operations or alterations in the character of use where proposed development concerns a “feedlot”
5. In terms of subsection 1 of section 6 of the Regional, town and Country Planning (development) regulations 1976, the Local Planning authority is required to send details of the application to-
   a. The secretary of Health and Child Welfare, in respect to developments likely to give rise to noxious or offensive gas defined in section 2 of the Atmospheric Pollution Prevention Act[Chapter 318]; and
   b. The secretaries for environment and Tourism and Lands and water Resources, in respect of any developments which may give rise to water pollution including any development that is likely to discharge, other than directly into the sewage system of the Local Authority, any effluent or waste water which may not comply with the standards of the quality prescribed (Effluent and Waste Water Standards) Regulations, 1977 (R. G. N No. 687 of 1977).

The aim of these requirements is to ensure that the development proposals which could result in the pollution of the atmosphere or any watercourse or underground water is subject to careful scrutiny by Government experts before these proposals are approved. At this early stage, improvements can be incorporated in the plans for the development which could even reduce more harmful nature of these by-products altogether. As a result of the action by the Local Planning Authority outlined above, the Ministries of Health and Child Welfare, Environment and Tourism, Lands and Water Resources could well call for additional information from the applicant in order to establish the nature and extend possible pollution from the industrial processes proposed. To avoid delays in dealing with the application, the applicant is requested to provide this information promptly. The following types of industries in particular are likely are like to give rise to serious pollution problems-
Abattoirs, breweries, chemicals, dairy, fertiliser, foundries, metal plating, pulp and paper mills, steel manufacture, tanneries, yeast manufacture.

6. Any information additional to that set in form which the applicant considers relevant to his/ her application, or where the spaces provided are inadequate for the particulars required, should be submitted in the form of numbered annexure.

Annexure 2 Specimen Development Register

Marondera City Council Development Register

Reg. No	File Ref	Property Description	Proposed Development and Cost	Name of Applicant	Date of Application	Date Form Acknowledgement	Date of Expiry	Date of Decision	Date permit lapses	Decision	Remarks
120/88	BB/1/5	Stand152 Murewa	Dwelling house extensions $10	J Mpofu	25/06/17	26/06/17	26/09/17	29/06/17	30/09/17	Permit	Extension Limited to 5m building line
121/88	Cn/2/10	Lot1 of Alpha	Farm store $20 000	K Clark	26/06/17	27/06/17	30/09/17	29/06/17	30/06/17	Permit	PRG agreed on 01/07/17
122/88	W/5/6	Stand 10Mutasa DSC	General Dealer and Grinding mill $30 00	L Chipunza	28/06/17	29/06/17	1/10/17	1/07/17	-	Refused	Appeal lodged 30/07/17 and dismissed on 15/08/17 Case No T106
123/88	P/ 10/ 2	Stand 512 Chipinge	Light engineering	C Partel	30/06/17	1/06/17	2/10/17	3/06/17	4/06	Permit	Extension to time agreed

Annexure 3 -Typical Acknowledgement letter- City of Bulawayo

CITY OF BULAWAYO

When calling or telephoning about this matter
Please ask for **TOWN PLANNER**

Engineering Services Department
Municipal Offices
Leopold Takawira Avenue
Josiah Tongogara Street
P O Box 1353
Bulawayo
Zimbabwe

Tel: (09) 75011
Fax: (263 - 9) 65534

1

Our Ref: TPA/TPB/TPC

DR KAMONJOLA
Box XXX
BULAWAYO

20 June 2017

Dear Sir

REGIONAL, TOWN AND COUNTRY PLANNING ACT, [Chapter 29:12]: APPLICATION FOR PERMIT FOR DEVELOPMENT OF THE REMAINING EXTENT OF LOT XXX MAPUMULO OF BANOLILA ESTATE.

I acknowledge receipt of your application dated 19 June 2017 to establish a lodge on the abovementioned property.

The application falls within the provisions of the Act's Section 26(3) in that it requires the Special Consent of the Council.

In terms of this Section, it is necessary that public notice be given of the application (at the applicant's expense) and adjacent and possibly other landowners notified. Details have accordingly been forwarded to the Town Clerk, from whom you will be hearing shortly.

Section 26 of the Act requires that your attention be drawn to the provisions of its Subsection (7), which states: -

> '(7) If the Local Planning Authority has not determined an application within three months of the date of acknowledgement of the receipt of the application or any extension of that period granted by the applicant in writing, the application shall be deemed to have been refused by the Local Planning Authority.'

You are also advised that in the case of such a deemed refusal, you have, in terms of Section 38 of the Act, a right of appeal to the Administrative Court within one month of notification of the decision.

Yours faithfully,

DIRECTOR OF WORKS

Annexure 4: Notification of Abating Properties

CITY OF BULAWAYO
ENGINEERING SERVICES DEPARTMENT
MEMORANDUM
TO: TOWN CLERK **DATE**: 20 June 2017

OUR REF: *XXXX*

REGIONAL, TOWN AND COUNTRY PLANNING ACT, Chapter 29:12: APPLICATION FOR PERMIT FOR DEVELOPMENT OF THE REMAINING EXTENT OF LOT XXX MAPUMULO OF BANOLILA ESTATE

An application has been received from Munyaradzi Kamonjola Box 14 Hillside Bulawayo, to establish a lodge on the above-mentioned property.
The application falls within the provisions of Section 26(3) of the Act in that it requires the Special Consent of the Council.
It is therefore necessary for the applicant to give public notice of the application at their own expense, and at the same time to notify adjacent landowners and such others as the planning authority may specify, and to submit proof of both.
I attach a copy of the advertisement for insertion in one issue of the local newspaper, at the applicant's expense, and give below a list of persons to whom a copy of the notice should be served.

PROPERTY	**OWNER**	**ADDRESS**
Byo		

The proposal has been circulated to branches and departments concerned, whose views it will be necessary to take into account.
After the objection period, therefore, and before the matter is submitted to the Committee, may it be referred back to me, please (including objections and, in due course, the applicant's comments) for final recommendation, including any conditions that should be imposed.
In terms of Section 26(7) of the Act, the application will be deemed refused if it is not determined by 20 September 2017.

If, therefore, consideration is likely to be delayed (because of objections or for some other reason), it is suggested that the applicant be asked for an extension in terms of that Section.

DIRECTOR OF WORKS

Annexure 5 - An advert is prepared as below for publication

REGIONAL, TOWN AND COUNTRY PLANNING ACT,
Chapter 29:12

NOTICE

OF AN APPLICATION FOR A PERMIT IN TERMS

OF SECTION 26 OF THE ACT

NOTICE is hereby given in terms of Subsection (3) of Section 26 of the Regional, Town and Country Planning Act, 1996, that an APPLICATION TO CARRY OUT THE FOLLOWING DEVELOPMENT ON THE REMAINING EXTENT OF LOT XXX MAPUMULOOF BANOLILA ESTATE(Lot 17, Glenforest Rd, Glenforest) district of Bulawayo has been lodged with the undersigned

It is proposed to establish a lodge on the above-mentioned property.
The application may be inspected at the address below during normal office hours.
Any person wishing to make objections or representations relating to the application must lodge them with the undersigned not later than …..[*Insert a date which is not less than one month after the date of the first publication of this notice*]

…….. TOWN CLERK

Annexure 6: Development Permit Format

REGIONAL, TOWN AND COUNTRY PLANNING ACT, 1996Chapter 29:12 (SECTION 26)

File Reference ……..

Permit Number ……

Applicant ……

DEVELOPMENT PERMIT

The …….. Council hereby grants a DEVELOPMENT PERMIT, in respect of the application dated …… and numbered…….. (Registered Number) in the register of the said Council, authorising the following development.

The construction on Stand No. ……..
Or

Located (description of land)……

……
……

……
……

Of a (the use, e.g. butchery/general dealer, etc.)……

……
……..

And the formation of the road access thereto shown on the plans, diagrams submitted with and part of the aforementioned application; the use of the said land buildings being for the purpose of any use referred to in Classes ……, or of any use incidental to such use.

This permit is granted subject to the undermentioned conditions:

……
……..

……
……..

……
……..

……
……..

……
……

Date of Issue **Name and designation of Official**

Annexure 7 Notes Attached to Permit

The attention of the applicant is drawn to the following matters:-

1. **Appeals**

   Any person aggrieved by any decision made or deemed to have been made by a Local Planning Authority in connection with this permit may, in terms of Section 38 of the Act, appeal to:

   The Administrative Court, P O Box 8338, Causeway Harare

   Such an appeal should be addressed to the Registrar and lodged with him within one month of the date of the notification of the decision against which the appeal is made.

2. **Warning**

   Attention is drawn to the fact that any action taken in pursuance of the granting of this permit within the period allowed for appeals shall be at the risk of the person taking the action concerned.

3. **Copies of Permit**

   Copies of this permit may be obtained on payment of the prescribed fee from the issuing Local Planning Authority. In this regard the permit number and file reference should be quoted on all correspondence.

4. **Amendment to Permit**

   Amendment to this permit can only be made as provided by Section 26(12) of the Act. Correspondence in this connection must quote the details referred to in paragraph 3 above. Any change required which is not of a minor nature cannot be effected by way of an amendment; application for a new permit would have to be made.

5. **Expiry**

   This permit expires, if not implemented (or fully completed), on…… (state date) unless the period of validity is extended by the Council in writing.)

6. **Permit Enures for Benefit of Burden of Land**

   Unless personal to the applicant, this permit for so long as it is valid enures for the benefit of, and is burden on, the land concerned.

Annexure 8 Format of Enforcement Order

REGIONAL, TOWN AND COUNTRY PLANNING ACT 29:12 (SECTION 32)

ENFORCEMENT ORDER

WHEREAS it appears to the ……
(Specific local authority) that development is being carried out in contravention of the ACT, that is, (specify type of illegal development and location) ……

……
……..

……
……..
And whereas it appears expedient to the said Local Planning Authority to serve upon you (name)…… being the owner of the aforesaid land on order in pursuance of Section 32of the Regional Town and Country Planning Act,

THEREFORE TAKE NOTE that in terms of Section 32 you (name)……
are ordered to (specify the action to be taken)……..

……
……

……
……

THIS ORDER WILL COME INTO OPERATION on (date)…… unless, in terms of Section38 of the Act, an appeal is lodged within one month from the service of this order, whereupon the operation of this order shall be suspended until such time as the appeal is finally determined or is withdrawn. Whether or not an appeal is lodged against this enforcement order by any person, the Local Planning Authority (specific local authority) may, in terms of Section 32 of the Act, at any time before it comes into operation, serve a Prohibition Order, prohibiting the continuation of all or any of the operations or uses specified on this Enforcement Order.

……..
……
Date Full name & Designation

……
Signature

NOTE:
The attention of the person(s) served with this notice is drawn to Section 32 and37of the Act which provide respectively that this enforcement order shall have effect against any subsequent development on the land concerned and for penalties (including the restoration of the land at the expenses of the owner) for non-compliance with the provision of this notice.

Annexure 9 Format of Prohibition Order

REGIONAL, TOWN AND COUNTRY PLANNING ACT (CHAPTER 29:12) (SECTION 34)

PROHIBITION ORDER

WHEREAS the ……

did on (date) …… serve upon you

(name)……the enforcement order annexed hereto, which enforcement order has not been withdrawn, set aside or yet become operative, and whereas the said Local Planning Authority considers it necessary to prohibit the continuation of the operations or uses herein specified in terms of Section 34 of the Regional, Town and Country Planning Act, 1976.

THEREFORE TAKE NOTE that in terms of the said Section 34, you (name)……..

…… are hereby ordered with effect from (state date)……..

…… which shall be the date from which this order takes effect, to discontinue (Specify precisely what is to be discontinued)……..

……
……

……
……

……
……..
This order shall continue in force until withdrawn by the Local Planning Authority or until the enforcement order annexed hereto is withdrawn, set aside or becomes operative.

…… ……
Date Name and Designation of Town Planning Official

Signature: ……

NOTE: 1) The attention of the person(s) served with this notice is drawn to the provisions of sub-sections 3 and 4 of Section 37 of the Act. Heavy penalties may be imposed for non-compliance with an order of a Local Planning Authority
2) In terms of Section 50 (2) of the ACT, compensation may be payable by a Local Planning Authority to any person who suffers any loss or damage as a direct result of compliance with a prohibition order if an appeal against the enforcement order concerned us upheld to the extent of allowing the prohibited operations or uses to continue.

Annexure 10 – Development management/control Checklist

DEVELOPMENT CONTROL CHECKLIST

Reference number: ..... Permit Number:.....

Stand Number:..... Name:.....

Development Enquiries to Local Authority

Ascertain whether a Development Permit is Required

.....

.....

If answer is NO : DEVELOPMENT TAKE PLACE

If answer is YES : Steps ONE to FIVE have to be undertaken

STEP ONE : Application is made on Forms 1 or 2

STEP TWO : Council official to check the Application

The form is properly completed and

Signed by the owner of the land and

The person wishing to develop .....

The correct fee is enclosed .....

The application is COMPLETE

The application is INCOMPLETE.

Council MUST return it to the applicant with reasons.

Step THREE: Council must send a letter of Acknowledgement to the Applicant within TWO weeks of receipt of the application.

Annexure 10 Continued

Step FOUR : Complete application considered by Council

Date.....

Consultation:

Health.....

Roads.....

Others.....

NO objection

Objections

Considered by Council

Step FIVE : Application Determined by Council

Application **APPROVED**

Council issues a **Permit**, which may include conditions that are necessary from a planning point of view, are reasonable and are capable of being enforced

Date: .....

Application **REFUSED**

Council prepares a **Refusal Notice** giving applicant ONE month's Notice for appeal

DEVELOPMENT TAKE PLACE

Annexure 11.BUILDING PLAN APPRAISAL CHECKLIST

Reference number: Stand number:……

Name:…… Number of Drawings……..

Estimated Value of Building……

Amount of Building Fee paid……

Council official to issue Receipt for building fee

If Application is unsatisfactory Council official to return it to Applicant with reasons

Minimum Health Standards
……
Town Planning Requirements
……
Liquor Licencing Regulations
……
Factories Act
……
Others
……

Reference number:…… Stand number:……

BUILDING PLAN CONTENTS

		More information	Checked
FLOOR PLAN:	Dimensions……	……	
	Rooms……	……	
	Lighting……	……	
	Ventilation……	……	
	Electrical fittings……	……	
	Sanitary Fittings……	……	
	Others……	……	
CROSS SECTION:	Foundations……	……	
	Floor……	……	
	Walls……	……	

	Windows……	……
	Roof……	……
	Others……	……
ELEVATION:	Natural Ground Level……	……
	External Finish……	……
	Dimensions……	……
	Others……	……
SITE PLAN:	Existing Features……	……
	Services……	……
	Dimensions……	……
	Scale……	……
	Orientation……	
	Abutting Properties……	
	Position of entrance	
	Building lines	
	Proposed development plinth area	
	Others……	……

CONDITIONAL APPROVAL……
Date:……

AWAITING ADVICE……
Date:……

Comment:……
……..

EXTENSION OF TIME……
Date:……..

Comment:……
……

MORE
INFORMATION……Date:……
…….

Application resubmit……
Date:……

REFUSAL……Date:……
……..
Reasons……
……..
……
……

APPROVAL……
Date……

Reference number..... Stand number.....

CONSTRUCTION INSPECTION

SETTING OUT .....

Date:.....

Comment.....

.....

EXCAVATION .....

Date:.....

Comment.....

.....

Footing.....

Date:.....

Comment.....

.....

.....

.....

Foundation walls.....

Date:.....

Comment.....

.....

.....

.....

Hard-core.....

Date:.....

Comment.....

.....

.....

.....

FOUNDATIONS.....

Date:.....

Comment.....

.....

.....

.....

FLOOR SLAB.....

Date:.....

Comment.....

.....

.....

.....

BRICK WORK.....

Date:.....

Comment.....

.....

.....

.....

WINDOWS.....Date.....

.....

Comment.....

.....

.....

.....

Ring Beam.....

Date:.....

Comment.....

.....

.....

.....

Wall Plate.....

Date:.....

Comment.....

.....

.....

.....

ROOF.....

Date.....

Comments.....

.....

.....

.....

DRAINAGE.....

Date.....

Comments.....

.....

.....

.....

OTHERS.....

Date.....

Comments.....

.....

.....

.....

.....

.....

FINAL INSPECTION.....

DATE.....

Comment:.....

.....

CERTIFICATE OF OCCUPATION……

Number……

Date……

Annexure 12: Specimen Stage Inspection Stamp

Chegutu Municipality

Stand No…… Plan No……

Centre…… Expiry Date……

Inspections	Signature	Date
1. Setting out		
2. Foundation trenches and footing levels		
3. Foundation brickwork to floor level		
4. Brickwork and window level		
5. Brickwork to wall plate		
6. Roof trusses		
7. Drainage/Sewerage work		
8. Final inspection		
9. CERTIFICATE OF OCCUPATION		

Annexure 13 Sample Occupation Certificate

Muri Town Council

Name……

Address……

Building No…… on Std. ……

Shown on Plan No. ……

The above building has been completed to my satisfaction and permission to occupy the building is granted.

……

……

Date Signed for Local Authority

Annexure 14: Building Inspection Checklist

FOUNDATIONS	Siting	Setting out	Trenches	Soil	Levels
FLOOR SLAB	Quality of concrete	DPC	Hard-core	Brickwork	
BRICKWORK	Door frame type	Frame position	Bricks	Mortar	
WINDOWS	Lintels	Air Bricks	Hoop iron Wire		
	Gables	Ceiling	Beams/Columns (if)		
ROOF ASSEMBLY	Wall Plate	Purlins	Trusses	Wall Tiles	
	Pitch	Tiles/AC Sheet		Guttering	
DRAINAGE/ SEWERAGE	Pipes/Type	Pipes/Quality		Layout	
	Diameter	Rodding Eyes		Vent pipes	
	Septic Tank/Soakaway		Air Test		
Electrical Fittings					
Sanitary Fittings					
Final Inspection	Check that each level has been successfully completed and that workmanship is satisfactory				
CERTIFICATE OF OCCUPATION					